

B.P. Koirala Memorial Cancer Hospital Act, 1997

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V.P. KOIRALA MEMORIAL CANCER HOSPITAL ACT, 2053

Royal Seal and Publication Date

2053.1.15

Amending Acts

1. Income Tax Act, 2048 2058.12.19
2. V.P. Koirala Memorial Cancer Hospital (First Amendment) Act, 2064 2064.9.30
3. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.7

Act No. 34 of the year 2053

An Act Made to Establish and Manage V.P. Koirala Memorial Cancer Hospital

Preamble: Whereas, in order to keep the everlasting memory of the people's leader late Bishweshwar Prasad Koirala, it is desirable to establish and operate a cancer hospital to prepare the necessary manpower for high-level study and research related to cancer disease, make this field self-reliant, provide high-level health services necessary for the diagnosis and treatment of persons suffering from cancer disease, and enable them to live a humane life,

Be it enacted by Parliament in the twenty-fifth year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the "V.P. Koirala Memorial Cancer Hospital Act, 2053".

(2) This Act shall commence from the date appointed by the Government of Nepal by a notification published in the Nepal Gazette. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Hospital" means the V.P. Koirala Memorial Cancer Hospital established pursuant to Section 3.

(b) "Committee" means the Board of Directors formed pursuant to Section 3. Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

(c) "Chairperson" means the Chairperson of the Committee.

(d) Amended by the First Amendment."Member" means a member of the Committee and said term also includes the Chairperson of the Committee.

(e) "Executive Director" means the Executive Director appointed pursuant to Section 12.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. Amended by the First Amendment. 3. Establishment of V.P. Koirala Memorial Cancer Hospital: (1) A V.P. Koirala Memorial Cancer Hospital is established as a national referral hospital to prepare the necessary manpower for high-level study and research related to cancer disease in Nepal, make this field self-reliant,

provide high-level health services for the prevention, diagnosis, and treatment of cancer disease and for persons suffering from that disease, and enable them to live a humane life.

(2) The Hospital shall be established at Bharatpur of Chitwan District, and branches or units of this Hospital may also be established in other districts as necessary. 4.

6. Functions, Duties and Powers of the Hospital: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Hospital shall be as follows:-

(a) To make available high-level health services for the prevention, diagnosis, and treatment of cancer disease.

(b) To operate the national cancer disease control program for the prevention, diagnosis, and treatment of cancer disease.

(c) To prepare necessary manpower for the prevention, diagnosis, and treatment of cancer disease.

(d) To conduct and cause to conduct study and research related to cancer disease.

(e) To maintain contact and coordination with domestic and foreign governmental and non-governmental organizations for the prevention, diagnosis, and treatment of cancer disease, prepare national policies, plans, and programs in relation thereto, and submit them to the Government of Nepal.

(f) To provide financial and technical assistance to bodies involved in the work of prevention, diagnosis, and treatment of cancer disease.

(g) To adopt protective measures and technologies as prescribed when storing, using, and disposing of radioactive substances while adopting radiotherapy methods in the work of prevention, diagnosis, and treatment of cancer disease.

(h) To award scholarships, medals, and prizes in the work of prevention, diagnosis, and treatment of cancer disease.

(i) To develop a cancer registration system and expand services through network hospitals and concerned bodies.

(j) To fix and collect fees for health services provided by the Hospital.

(k) To manage the Hospital properly.

(l) To construct, expand, and repair the Hospital.

(m) To arrange necessary means and facilities for the improvement and expansion of the Hospital's services.

(n) To submit the annual report of the Hospital to the Government of Nepal through the Committee.

(o) To periodically inform the Government of Nepal about policy decisions made regarding the Hospital and their implementation.

(p) To perform and cause to perform other necessary functions to fulfill the objectives of the Hospital. 7.

Formation of the Committee: (1) Amended by the First Amendment.

For the purpose of operating, overseeing, and managing the Hospital by exercising all the functions, duties, and powers vested in the Hospital under this Act or the rules made under this Act, a Board of Directors shall

be formed as follows:- (a) A medical doctor nominated by the Government of Nepal from among senior medical doctors who have obtained at least a post-graduate degree in medical science from a recognized teaching institution and have worked for at least fifteen years in the field of cancer disease, or who have obtained at least a post-graduate degree in medical science from a recognized teaching institution and have at least twenty years of experience in the health field - Chairperson (b) Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. - Member (c) The Secretary of the Ministry of Health and Population, or an officer of at least the gazetted first class of that Ministry designated by him/her - Member (d) The Secretary of the Ministry of Finance, or an officer of at least the gazetted first class of that Ministry designated by him/her - Member (e) Chief, Bharatpur Municipality - Member (f) Four persons nominated by the Government of Nepal from among medical doctors involved in the field of cancer disease, ensuring representation of Dalit, Janajati, and Madhesi communities, including at least two women - Member (g) Two persons nominated by the Committee from among medical doctors working in the Hospital, including, if possible, one woman - Member (h) Two persons nominated by the Government of Nepal from among distinguished persons working in the field of social service, including at least one woman - Member (i) Representative, Nepal Health Research Council - Member (j) Executive Director - Member-Secretary (2) The term of office of a nominated member under sub-section (1) shall be three years. (3) Notwithstanding anything contained in sub-section (2), if a nominated member fails to perform work honestly or fails to fulfill his/her official responsibilities or lacks efficiency, the Government of Nepal may remove such member from the membership at any time. Provided that, before being removed in such manner, he/she shall not be deprived of the opportunity to submit his/her defense. (4) The Committee may, if it deems necessary, invite any expert on a relevant subject to participate in its meeting as an observer. (5) Other procedures relating to the meeting of the Committee shall be as prescribed. 8.

Cessation of Membership: (1) Except for an ex-officio member of the Committee, the Chairperson and other members shall not hold their office in any of the following circumstances:- (a) Upon death, (b) Upon expiry of term, (c) Upon resignation submitted to the Committee being accepted, (d) Upon being absent from the meetings of the Committee for eight consecutive times without any notice, (e) Deleted by the First Amendment (2) If the office of the Chairperson or a member falls vacant due to the reasons set forth in sub-section (1), another Chairperson or member may be nominated for the remaining period. 9. Proceedings not to be invalidated: No act or proceeding of the Committee shall be invalidated merely on the ground of any defect in its formation or the existence of a vacancy in the seat of any member. Amended by the First Amendment. 10. Functions, Duties and Powers of the Chairperson: (1) The functions, duties, and powers of the Chairperson shall be as follows:- (a) To formulate and implement necessary plans and programs to operate the Hospital effectively, (b) To implement and cause to implement the decisions made by the Committee, (c) To cause the preparation of the annual program of the Hospital and submit it to the Committee. (2) Other functions, duties, and powers of the Chairperson shall be as prescribed. 11. Functions, Duties and Powers of the Member-Secretary of the Committee: The functions, duties, and powers of the Member-Secretary of the Committee shall be as prescribed. 12. Executive Director, Advisors and Other Employees: (1) The Committee shall appoint an Executive Director for conducting the daily administration of the Hospital. (2) The Hospital may appoint other advisors and employees as necessary. Amended by the First Amendment. (3) The facilities of the members of the Committee and advisors shall be as prescribed. Added by the First Amendment. (3A) The qualifications, appointment, remuneration, terms of service, and facilities of the Executive Director and employees shall be as prescribed. 13. Functions, Duties and Powers of the Executive Director: The functions, duties, and powers of the Executive Director shall be as prescribed. Amended by the First Amendment. 14. Prohibition on Members of the Committee and Employees of the

Hospital: No member of the Committee, advisor, Executive Director, or employee of the Hospital shall, directly or indirectly, be a party to any transaction or contract with the Hospital. 15.

No Claim for Compensation against the Hospital: A patient admitted to the Hospital for the treatment of cancer disease shall not be entitled to claim any financial or other compensation against the Hospital or its doctors or health workers for any adverse physical effects caused to the patient due to the use of radioactive substances and other medicines by the doctors or health workers of the Hospital following the prescribed procedures and in the prescribed dosage. Provided that this section shall not be deemed to prevent a claim for compensation against such doctor or health worker if any adverse physical effect is caused to the patient due to the use of radioactive substances and other medicines in a manner deviating from the prescribed procedures and prescribed dosage due to the negligence or carelessness of the doctor or health worker of the Hospital. 16. Right to Conduct Autopsy for Study and Research: (1) If a patient admitted to the Hospital for the treatment of cancer disease has given consent for his/her body to be examined after death for study and research related to such disease, the Hospital may conduct an autopsy of the body of such deceased person accordingly before cremation. (2) If a patient admitted to the Hospital dies without having given consent for study or research pursuant to sub-section (1), the Hospital shall not be deemed to be obstructed from examining the body of such deceased person for any study or research related to cancer disease. (3) Other procedures and conditions relating to giving and taking consent for autopsy pursuant to sub-section (1) shall be as prescribed. 17. Fund of the Hospital: (1) The Fund of the Hospital shall consist of the following amounts, and the expenses of the Hospital shall be borne from that Fund:- (a) Amounts received for the Hospital from the Government of Nepal, (b) Amounts received from any foreign government or international organization, (c) Amounts received from services rendered by the Hospital, (d) Amounts received as grants from various persons, (e) Amounts received from other sources. (2) Amounts received by the Hospital from the Government of Nepal, a foreign government, or an international organization for a specific program or work shall be spent only on that program or work. (3) The operation of the Fund of the Hospital shall be as prescribed. 18.

Exemptions and Facilities for the Hospital: (1) The Hospital shall not be liable to customs, sales tax, Deleted by the Income Tax Act, 2058. and registration fees on the following matters:- (a) Necessary construction materials, machinery, and tools to be imported from abroad for the construction and operation of the Hospital, (b) Scholarships, fellowships, and prizes awarded by the Hospital, (c) Donations, grants, and other sources of income received by the Hospital, and the property of the Hospital, and (d) Registration of deeds of immovable property purchased by the Hospital. (2) Before importing goods as per clause (a) of sub-section (1), the Hospital shall submit a statement containing the price list and quantity of such goods to the Ministry of Finance through the Ministry of Health. 19. Accounts and Audit: (1) The accounts of income and expenditure of the Hospital shall be kept as prescribed. (2) The audit of the Hospital shall be conducted by the Office of the Auditor General. 20. Technical Committee may be Formed: (1) The Committee may, as necessary, form a technical committee to provide the technical services and assistance required by the Hospital. (2) The functions, duties, powers, and procedures of the technical committee formed pursuant to sub-section (1) shall be as determined by the Committee. 21. Delegation of Powers: The Committee may, as necessary, delegate the powers vested in it under this Act or the rules made under this Act to any member of the Committee, the Executive Director of the Hospital, or any official employee. 22. Power to Give Directions: The Government of Nepal may give directions to the Hospital on policy matters it deems necessary in connection with the implementation of this Act, and it shall be the duty of the Hospital to comply with such directions. 23. Contact with the Government of Nepal: If the Hospital needs to contact the Government of Nepal on any policy matter relating to the treatment and prevention of cancer, it shall do so through Amended by the First

Amendment.the Ministry of Health and Population, and on other matters, it may contact any ministry or office of the Government of Nepal directly. 24. Power to Make Rules: The Committee may make necessary rules to implement the objectives of this Act. Added by the First Amendment.Provided that, while making rules on matters that impose a financial burden on the Government of Nepal, the consent of the Government of Nepal shall be obtained. 25.